

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
JABAL FRANCISCO, and ABAHAM MARTINEZ,

SUMMONS

Plaintiffs,

Index No.
Purchased:

-against-

CITY OF NEW YORK, MATTHEW S. MIRET, and
JOHN OR JANE DOE 1-10,

Plaintiff Designates Bronx County as
the Proper Venue for Trial

Defendants.

Venue is Based on Where the Causes
of Action Arose.

-----X
TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
March 13, 2024

SIM & DEPAOLA, LLP

Attorneys-at-Law

42-40 Bell Boulevard – Suite 405

Bayside, New York 11361

(718) 281-0400



Sameer Nath, Esq.

TO: **CITY OF NEW YORK**

Via Corporation Counsel of the City of New York
100 Church Street
New York, New York 10007

MATTHEW S. MIRET

(NYPD Shield No. 7813; Tax. Id. No.: 961955)

Via 23rd NYPD P.S.A. 7

737 Melrose Avenue
Bronx, NY 10455

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
JABAL FRANCISCO, and ABAHAM MARTINEZ,

Index No.

Plaintiffs,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, MATTHEW S. MIRET, and
JOHN OR JANE DOE 1-10,

Defendants.

-----X
Plaintiffs, **JABAL FRANCISCO**, and **ABRAHAM MARTINEZ**, by and through the undersigned attorneys, **SIM & DEPAOLA, LLP**, as and for their Complaint against the Defendants, **CITY OF NEW YORK, MATTHEW S. MIRET**, and **JOHN or JANE DOE 1 - 10**, hereby allege and state as follows:

1. This is a civil rights action, in which Plaintiff seeks relief *vis-à-vis* 42 U.S.C. §§ 1981, 1983, 1985, 1986 and 1988, the laws of the City and State of New York, including but not limited to New York City Human Rights Law under NYC Admin Code §§ 8-801 – 8-806, in addition to the self-executing clauses or implied private causes of action within the constitution of State of New York, for the violations of his civil rights, as enumerated by the First, Fourth, Fifth, Sixth, Eighth and Fourteenth Amendments to the Constitution of the United States, the New York State Constitution, in addition to the Laws of the City and State of New York.

2. The following claims arose on or about December 14, 2020, when Defendants, acting under color of state law, caused Plaintiffs to be unlawfully stopped, questioned, searched, battered and assaulted, arrested and detained in the vicinity of the intersection of East 158th Street and Cauldwell Avenue in Bronx, New York. As a result, Plaintiffs were deprived of their liberty and suffered various physical, emotional and psychological injuries. Plaintiffs were wrongfully detained over

the course of approximately two (2) days until their release from physical custody. Plaintiffs were maliciously prosecuted and denied Due Process and Equal Protection of the law, until all criminal charges under were unconditionally dismissed and sealed on April 28, 2021, pursuant to §§ 160.50 and 160.60 of the Criminal Procedure Law which constituted a termination of the criminal proceedings in favor of Plaintiff.

3. At all times here mentioned, defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

4. Plaintiff has timely served the City of New York, Office of the Comptroller, with notice of his claims within 90 days of the date(s) from which they arose.

5. Over 30 days have elapsed since the filing of the Notice of Claim and this matter has not been adjusted or settled.

6. Under New York City Human Rights Law under NYC Admin Code §§ 8-801 – 8-806, the Plaintiff is not required to file his Notice of Claim or submit to an oral examination pursuant to section 50-H of the New York General Municipal Law.

7. This action and associated claims have been filed within the applicable statute of limitations, which is three years for state and federal claims availing upon the New York Executive Order issued by former-Governor Andrew Cuomo pursuant Executive Order 202.8 *et seq* that tolled the statute of limitations for the period from March 20, 2020 to November 4, 2020 for a period of two hundred twenty eight (228) days in response to the COVID 19 pandemic.

8. Plaintiff seeks monetary damages (compensatory and punitive) against defendants, an award of costs and reasonable attorney's fees, with all interest then accrued, together with such other or further relief, as this venerable Court may deem just and proper.

PARTIES

9. At all relevant times herein, Plaintiff, JABAL FRANCISCO, is an adult black or African American male, who resides in Bronx, New York.

10. At all relevant times herein, Plaintiff, ABRAHAM AMRTINEZ, is an adult Hispanic or Latino male, who resides in Bronx, New York.

11. Defendant CITY OR NEW YORK (“City”) is a municipal corporation duly organized and existing, under the laws of the State of New York.

12. At all relevant times herein, the New York City Police Department (“NYPD”) was a wholly owned subsidiary which was further wholly operated, managed, maintained and controlled by Defendant City.

13. At all relevant times herein, Defendant City, acting through its NYPD, was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, screening, hiring, training, supervision, discipline, retention and conduct of all NYPD personnel, including police officers, detectives, investigators, sergeants, lieutenants, captains, correctional officers, and other supervisory officers or officials, as well as the individually named NYPD Defendants herein.

14. At all relevant times herein, Defendant City was responsible for enforcing the rules and regulations of the NYPD and for ensuring that the NYPD personnel obey the laws and constitutions and laws of the United States, State of New York and City of New York.

15. At all relevant times herein, Defendant, MATTHEW S. MIRET (“MIRET”), was a police officer, supervisor, policy maker or official employed by the NYPD under Shield No. 7813 and Tax. Id. No.: 961955, and as such, was acting in the capacity of an agent, servant, and employee of Defendant City. Defendant MIRET is being sued in his individual and official capacities.

16. At all relevant times herein, Defendants JOHN OR JANE DOE 1-10 were police officers, detectives, sergeants, supervisors, policymakers or officials employed by the NYPD or City of New York. At this time, Plaintiff does not know the true names or tax registry numbers of Defendants, JOHN OR JANE DOE 1-10, as such knowledge is within the exclusive possession of Defendants.

17. The names JOHN OR JANE DOE 1-10 are fictitious and meant as placeholders for the Police Officers who (1) falsely arrested, detained and imprisoned Plaintiffs (2) illegally seized Plaintiff ABRAHAM MARTINEZ's motor vehicle and failed to return it which constituted a breach of bailment, (3) assaulted, battered, and handcuffed Plaintiffs, (4) illegally interrogated Plaintiffs without reading their Miranda rights and in the absence of Counsel, (5) maliciously prosecuted Plaintiff, (6) failed to intervene and prevent the other Defendants from doing the same and who (7) aided, abetted, assisted, and acted in concert with the other defendants to do the same.

18. At all relevant times herein, Defendants JOHN OR JANE DOE 1-10 were acting as agents, servants and employees of the City of New York, or the NYPD. Defendants John or JOHN OR JANE DOE 1-10 are being sued in their individual and official capacities.

19. At all relevant times herein, Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City or State of New York.

FACTUAL CHARGES

20. On December 14, 2020, at approximately 11:00 p.m., in the vicinity of the intersection of East 158th Street and Cauldwell Avenue in Bronx, New York, Plaintiffs were illegally targeted,

because of his race, religion, national origin or other improper characteristic for adverse police action, by Defendants, including MIRET, and JOHN or JANE DOE 1 - 10.

21. Plaintiff were lawfully sitting inside Plaintiff ABRAHAM MARTINEZ's motor vehicle at the aforesaid location in obedience of all traffic laws, statutes and ordinances, when they were illegally ordered to exit the vehicle whereupon they were illegally arrested, assaulted, battered, and handcuffed despite the fact that Defendants did not have reasonable suspicion or probable cause to do so and Plaintiffs further exhibited no indicia of criminal or illegal behavior and further had not been violating any laws.

22. Defendants illegally seized Plaintiff MARTINEZ's car and despite the fact that Plaintiffs criminal charges were unconditionally dismissed and sealed, they have failed or refused to return it even to the present day which constitutes a breach of bailment.

23. Defendants, including MIRET, and JOHN or JANE DOE 1 - 10, violently contorted Plaintiffs' arms behind their backs to which they affixed metal handcuffs in an excessively tight fashion which caused Plaintiffs' hands and wrists to become swollen, and bruised.

24. Plaintiffs repeatedly requested that Defendants, including MIRET, and JOHN or JANE DOE 1 - 10, loosen the handcuffs, because they were causing substantial pain and discomfort due to their excessive tightness.

25. Defendants, including MIRET, and JOHN or JANE DOE 1 - 10, ignored all of Plaintiffs' pleas to loosen the handcuffs.

26. Defendants, including MIRET, and JOHN or JANE DOE 1 - 10, removed Plaintiffs to the 40th NYPD precinct against their will, where Defendants fingerprinted, photographed, searched and confined Plaintiff to a cell.

27. At the Precinct Defendants, including MIRET, and JOHN or JANE DOE 1 – 10 illegally questioned Plaintiffs as to whether they were in a street gang and demanded they provide information on said street gang without advising Plaintiffs of their rights pursuant to *Miranda v. Arizona*, and in the absence of Counsel.

28. Plaintiffs were then released from the Precinct with DATs for purported marijuana possession when Plaintiffs were never observed with marijuana nor was any recovered from their persons during any searches.

29. Defendant MIRET signed or caused to be signed a criminal complaint against Plaintiffs, in which they knowingly affirmed the truth of the fabricated allegations against Plaintiffs.

30. Plaintiffs' charges were dismissed and sealed pursuant to, *inter alia*, CPL 160.50 on April 28, 2021 which constituted a termination favorable to the accused.

31. Defendants, including MIRET, and JOHN or JANE DOE 1 - 10, arrested and caused a criminal prosecution to be initiated against Plaintiffs, because of their desires to use Plaintiffs' arrest and criminal prosecution to incur additional overtime compensation, benefits and favor from the superior officers, to avoid adverse consequences associated with failing to meet NYPD departmental arrest quotas, and also to conceal their egregious violations of proper police procedures and gross misconduct, including their fabrications of non-existent observations, evidence and information.

32. Defendants, including MIRET, and JOHN or JANE DOE 1 - 10, arrested, applied excessive force and initiated a malicious prosecution against Plaintiffs in retaliation for Plaintiffs' exertion of his constitutional right to freely express his opinion and inquiries, namely Plaintiffs' displeasure with the manner in which Defendants approached and addressed them and their request for an explanation as to why Defendants humiliatingly arrested them in full open public view.

33. As a result, Plaintiffs developed a severe fear of police officers, which prevented them from venturing from his house for a period of time and has effectively permanently chilled their desire and ability to communicate with police officers.

34. Defendants, including MIRET, and JOHN or JANE DOE 1 - 10, unlawfully targeted and decided to stop and effect unlawful seizures of Plaintiffs due to Plaintiffs' status as (1) Black or African American, and (2) Hispanic or Latino males.

35. Defendants, including MIRET, and JOHN or JANE DOE 1 - 10, engaged in a conspiracy to falsely arrest and maliciously prosecute Plaintiffs by personally conferring with each other, regarding the fabrication of the aforementioned non-existent evidence and observations, as well the manner and means by which said fabrications would be forwarded to the District Attorney's Office.

36. Plaintiff asserts that the Defendants, including MIRET, and JOHN or JANE DOE 1 - 10, who violated Plaintiffs' civil rights, are part of a larger pattern and practice of similar misconduct, which is so widespread, pervasive and consistent throughout the NYPD and the City of New York that the commission such constitutionally violative behavior has become tantamount to an official policy or custom within the NYPD and City of New York or, at the very least, conclusive evidence that the City and the NYPD have either tacitly approved of such egregious wrongdoings or that they have become deliberately indifferent to the civil rights of those who may come into contact with their police officers.

37. The individually named Defendants herein, as well as other officers serving in the employ of the NYPD and City of New York, have blatantly, shamelessly, consistently and repeatedly engaged in conduct violative of the civil rights guaranteed and protected by Constitution of the United States, in addition to the laws and Constitution of the State of New York, all without

incurring any ramifications for such misconduct and, ostensibly, with the full and complete blessing of the NYPD, the City of New York and their respective policymakers and supervisors.

38. *The New York Times*, as well as numerous other reputable journalistic enterprises, have reported on the widespread corruption within the NYPD and City of New York, particularly the incredibly disconcerting proclivity of many NYPD officers to lie about subject matters that are materially relevant to criminal prosecutions, including the complete fabrication of arrest evidence and witnesses. Also detailed, is the NYPD's obstinate refusal to effectuate corrective or preventive measures to combat the inevitable recurrence of such misdeeds, and perhaps most troubling, the NYPD's alarming tendency to, instead, reward and promote these officers, including those who were inculcated via incontrovertible evidence, such as video evidence.

39. The constitutionally repugnant behavior that persists within the ranks of the NYPD results from the NYPD's own policies, rules and procedures, namely the NYPD's incredibly flawed and illegal use of arrest quotas. Despite its illegality, such policies remain systemin throughout the NYPD and its individual commands. The NYPD, however, was not content in compelling its officers to effect as many arrests as possible, regardless of the presence of any legal right to do, it promulgated various subsets of quotas, which are predicated on race, color or ethnicity. Additionally, the NYPD, its supervisors or policymakers would assign varying point values to arrests, which were, again, impermissibly based upon the arrestee's race, color or ethnicity. Unsurprisingly, officers would be better rewarded for minority arrests or summonses. This egregious conduct has reported by numerous respected media outlets and publications and has even formed the basis for federal lawsuits against the City and the NYPD, which were commenced by its own employee officers.

40. On June 17, 2020, the *New York Daily News* published an article, by Graham Rayman, entitled “Brooklyn Cop Claims he was Punished for not Meeting Arrest Quotas, Refusing to Take Responsibility for Controversial Arrest in which he Wasn’t Involved,” describing allegations from an NYPD Police Officer, Terrence Dickerson, that he was retaliated against by the NYPD for refusing to adhere to mandatory racially based arrest quotas and for his refusal to accept responsibility for a controversial and publicized arrest via the excessive force, despite the fact that he was not even at the scene.

41. Another article with a title that speaks for itself, also published by the *New York Daily News*, on December 5, 2019, and written by Graham Rayman, is entitled “Ex-Cop Details NYPD ‘Collar Quotas’—Arrest Black and Hispanic Men, ‘No Cuffs on Soft Targets’ of Jews, Asians, Whites: Court Docs.”

42. *The New York Times*, on December 6, 2019, published an article by Joseph Goldstein and Ashley Southall, entitled “I Got Tired of Hunting Black and Hispanic People,” which revealed a disturbing account from a different NYPD Police Officer, Anthony Diaz, describing a police force that measures the quality of police work by the quantity of minority arrests.

43. On March 18, 2018, *The New York Times* published an explosive article, entitled “Promotions, Not Punishments for Officers Accused of Lying,” written by Joseph Goldstein. Mr. Goldstein shines a light on the multitude of flaws within the CCRB and the NYPD, highlighting the fact that the substantiation of a claim against an officer will invariably rely on the presence of incontrovertible proof against the officer. Due to the rarity availability of this type of evidence, an alarmingly small percentage of officer misconduct claims are substantiated. The CCRB is further handicapped by a terribly designed system that requires evidence of a virtually indisputable nature to substantiate any claim against an officer. The article also details the NYPD’s persistent

reluctance to investigate or discipline officers who lie and even posits that this reluctance is a significant cause of the lying pandemic within the NYPD. The article references various officers and detectives who were the subject of credible accusations relating to the officers' intentionally false statements, with some allegations coming from federal and state judges.

44. On September 12, 2019, *The New York Times* published another article by Joseph Goldstein, entitled "Officers Said They Smelled Pot. The Judge Called Them Liars." Unsurprisingly, this article dealt with the unusually high frequency of officers using the odor of marijuana to excuse a search that conspicuously does not result in the recovery of any marijuana. It should not require an article in *The New York Times* to call attention to such patently disingenuous tactics, but has become necessary for a variety of reasons, including the NYPD's failure to correct such behavior, the willingness of prosecutors and judges to credit the lying officers and the increasing rate of occurrence.

45. On April 24, 2019, *The New York Times* published an article, entitled "Detective's Lies Sent Three People to Prison, Prosecutors Charge," by Sean Piccolo, detailing the lies of NYPD Second Grade Detective Joseph Franco and how those lies resulted in the imprisonment of at least three innocent people. The article described how Det. Franco lied about observing drug transactions on at least three separate occasions, lies that were only uncovered through contradictory video evidence. Det. Franco's lies resulted in the innocent individuals each being sentenced to prison terms in excess of one-year.

46. Other articles include: (i) "Testilying' by Police: A Stubborn Problem.," by Joseph Goldstein, *The New York Times*, March 18, 2018; (ii) "New York Detective Charged with Faking Lineup Results," by Joseph Goldstein, *The New York Times*, February 17, 2018; (iii) "He Excelled as a Detective, Until Prosecutors Stopped Believing Him," by Joseph Goldstein, *The New York*

Times, October 17, 2017; (iv) “Review Board Notes Rise in New York Police Officers’ False Statement,” by J. David Goodman, *The New York Times*, May 14, 2015; (v) “In Brooklyn Gun Cases, Suspicion Turns to the Police,” by Stephanie Clifford, *The New York Times*, December 11, 2014; (vi) “Detective is Found Guilty of Planting Drugs,” by Tim Stelloh, *The New York Times*, November 1, 2011; and (vii) “The Drugs? They Came from the Police,” by Jim Dwyer, *The New York Times*, October 13, 2011.

47. The NYPD has a longstanding and ignominious record of failing to discipline its officers, or even entertaining allegations of wrongdoing against them. On June 26, 2019, *The New York Times* published an article, entitled “2,495 Reports of Police Bias. Not One Was Deemed Valid by the N.Y.P.D.” This article reported that within the last five (5) years, almost 2,500 separate individuals have filed formal complaints with the NYPD alleging that an officer acted with bias toward them, with not a single one being substantiated by the NYPD. Such a finding is plainly incredible and obviously the result of deliberately poor or nonexistent investigatory protocols. The report further impugned the NYPD’s commitment to combat the prejudices and the biases exhibited by many of its officers.

48. Upon information and belief, the NYPD, the City of New York, and their respective policymakers, officials or supervisors have imposed, tacitly approved or acquiesced to policies, customs, or patterns and practices within the NYPD that resulted in Plaintiff’s arrest without probable cause.

49. Upon information and belief, the NYPD, the City of New York, and their respective policymakers or supervisors have failed to provide adequate training regarding the identification of probable cause, reasonable suspicion or the appropriate amount of force to be used.

50. Defendants' actions, pursuant to Plaintiff's underlying arrest, which occurred without even the semblance of probable cause, were so blatantly violative of Plaintiff's civil rights that the tacit approval of identical or similar acts by the policymakers or supervisors of the NYPD and the City of New York, as well as their deliberate indifference towards the rights of any individuals who may come into contact with Defendants, should be inferred, because such flagrant deprivations of constitutionally protected rights could not and would not occur without the tacit approval or deliberate indifference regarding the commission of such violations by the policymakers or supervisors of the NYPD and City of New York.

51. Upon information and belief, further details and facts, relating to the unlawful policies, customs or patterns and practices of the NYPD, City of New York and their respective policymakers, supervisors, police officers or employees, will become known after the completion of discovery, as such information is presently within the exclusive possession of Defendants, the NYPD and City of New York.

52. Upon information and belief, the personnel files, records and disciplinary histories of the officer Defendants will reveal a history of Constitutional violations indicative of Defendant City's knowledge that the individual officer Defendants were unfit for employment as NYPD officers, or for employment in general, and that the probability of the individually named Defendants committing similar violations in the future was extremely high.

53. Upon information and belief, said personnel files, records and disciplinary histories will conclusively show that the City and the NYPD were fully aware of Defendants' past constitutional violations, the unacceptably high probability for the recurrence of similar transgressions, the unreasonably dangerous situations that were likely to result from their hiring or retention, as well as their unsuitability for employment as law enforcement officers, or for employment in general,

and that the NYPD and City of New York failed to engage in any preventive or corrective action intended to diminish the likelihood of recurrence for such violations, which is tantamount to the City's tacit approval of such misconduct or the City's deliberate indifference towards the civil rights of those who may interact with its employees, including Defendants MIRET, and JOHN or JANE DOE 1 - 10.

54. Upon information and belief, the individually named Defendants have combined to be named as Defendants in numerous lawsuits that have accused them of committing violations similar or identical to those alleged herein, all of which have resulted no disciplinary or corrective action of any kind.

55. Upon information and belief, the NYPD and City of New York and have failed, or outright refused, to correct the individually named Defendants' predilections to engage in unconstitutional behavior or attempt to prevent the recurrence of such misconduct.

56. The aforementioned acts of Defendants, including MIRET, and JOHN or JANE DOE 1 - 10, directly or proximately resulted in the deprivation or violation of Plaintiffs' civil rights, as guaranteed and protected by the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution, as well as the laws and Constitution of the State of New York.

57. As a direct or proximate result of said acts, Plaintiffs were caused to suffer the loss of their liberty, irreparable reputational harm, loss of earnings and potential earnings, breach of bailment, physical injury, as well as severe and permanent emotional distress, including fear, embarrassment, humiliation, traumatization, frustration, extreme inconvenience, and anxiety.

FIRST CAUSE OF ACTION

Protected Speech or Activity Retaliation Claim Under
New York State Law

58. The above paragraphs are here incorporated by reference as though fully set forth herein.

59. Plaintiffs engaged in speech and activities that were protected by Article I, Section 8, of the New York State Constitution.

60. Defendants committed impermissible or unlawful actions against Plaintiff that were motivated or substantially caused by Plaintiffs' constitutionally protected speech or activities.

61. Defendants' retaliatory actions against Plaintiffs resulted in the deprivation of his liberty and the initiation of criminal charges against him.

62. Defendants' retaliatory actions adversely affected Plaintiffs' protected speech or activities by physically or procedurally preventing them from further pursuing said protected speech or activities or by chilling their desire to further participate or engage in such protected speech or activities.

63. Accordingly, Plaintiffs' right to engage in protected speech and activities, guaranteed and protected by Article I, Section 8, of the New York State Constitution, were violated by Defendants.

64. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoings, under the doctrine of *respondeat superior*.

65. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

SECOND CAUSE OF ACTION

First Amendment Retaliation Claim Under
42 U.S.C. § 1983 Against Individual Defendants

66. The above paragraphs are here incorporated by reference as though fully set forth herein.

67. Plaintiffs engaged in speech and activities that were protected by the First Amendment to the United States Constitution.

68. Defendants committed impermissible or unlawful actions against Plaintiffs that were motivated or substantially caused by Plaintiffs' constitutionally protected speech or activities.

69. Defendants' retaliatory actions against Plaintiffs resulted in the deprivation of his liberty and the initiation of criminal charges against him.

70. Defendants' retaliatory actions adversely affected Plaintiffs' protected speech or activities by physically or procedurally preventing them from further pursuing said protected speech or activities, or by chilling their desire to further participate or engage in such protected speech or activities.

71. Accordingly, Plaintiffs' right to engage in protected speech and activities, as guaranteed and protected by the First Amendment to the United States Constitution, was violated by Defendants.

72. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

THIRD CAUSE OF ACTION
Unlawful Search and Seizure Under
New York State Law

73. The above paragraphs are here incorporated by reference as though fully set forth herein.

74. Defendants subjected Plaintiffs and their property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

75. Plaintiffs were conscious and fully aware of the unreasonable searches and seizures to his person and property.

76. Plaintiffs did not consent to the unreasonable searches and seizures to their person or property.

77. The unreasonable searches and seizures to Plaintiffs' person and property were not otherwise privileged.

78. Accordingly, Defendants violated Plaintiffs' right to be free from unreasonable searches and seizures, pursuant to Article I, Section 12, of the New York State Constitution and Article II, Section 8, of the New York Civil Rights Law.

79. Defendant City of New York, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

80. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

FOURTH CAUSE OF ACTION

Unlawful Search and Seizure Under 42 U.S.C. § 1983 Against Individual Defendants

81. The above paragraphs are here incorporated by reference as though fully set forth herein.

82. Defendants subjected Plaintiffs and their property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

83. Plaintiffs were conscious and fully aware of the unreasonable searches and seizures to their persons and property.

84. Plaintiffs did not consent to the unreasonable searches and seizures to their persons or property.

85. The unreasonable searches and seizures to Plaintiffs' persons and property were not otherwise privileged.

86. Accordingly, Defendants violated Plaintiffs' right to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the United States Constitution.

87. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

FIFTH CAUSE OF ACTIONFalse Arrest and False Imprisonment Under
New York State Law

88. The above paragraphs are here incorporated by reference as though fully set forth herein.
89. Defendants subjected Plaintiffs to false arrest, false imprisonment, and deprivation of liberty without a valid warrant or probable cause.
90. Plaintiffs were conscious of their confinement.
91. Plaintiffs did not consent to their confinement.
92. Plaintiffs' arrests and false imprisonment were not otherwise privileged.
93. Defendant City of New York, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.
94. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

SIXTH CAUSE OF ACTIONFalse Arrest and False Imprisonment Under
42 U.S.C. § 1983 Against Individual Defendants

95. The above paragraphs are here incorporated by reference as though fully set forth herein.
96. The Defendants violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiffs.
97. The wrongful, unjustifiable, and unlawful apprehensions, arrests, detentions, and imprisonment of Plaintiffs were carried out without a valid warrant, without Plaintiffs' consent, and without probable cause or reasonable suspicion.
98. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiffs.
99. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

SEVENTH CAUSE OF ACTIONAssault and Battery Under
New York State Law

100. The above paragraphs are here incorporated by reference as though fully set forth herein.

101. At all relevant times, Defendants caused Plaintiffs to fear for their physical well-being and safety and placed them in apprehension of immediate harmful and/or offensive touching.

102. Defendants engaged in and subjected Plaintiffs to immediate harmful or offensive touching and battered them without consent or justification.

103. Due to the intentional, willful and unlawful acts of Defendants, Plaintiffs suffered damages.

104. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

105. As a direct and proximate result of this breach, Plaintiffs sustained the damages hereinbefore alleged.

EIGHTH CAUSE OF ACTIONExcessive Force Under
42 U.S.C. § 1983 Against Individual Defendants

106. The above paragraphs are here incorporated by reference as though fully set forth herein.

107. The Defendants violated Plaintiffs' rights under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiffs' consent.

108. Defendants engaged in and subjected Plaintiffs to immediate harmful or offensive touching and battered them without consent.

109. As a direct and proximate result of this breach, Plaintiffs sustained the damages hereinbefore alleged.

NINTH CAUSE OF ACTIONMalicious Prosecution Under
New York State Law

110. The above paragraphs are here incorporated by reference as though fully set forth herein.

111. Defendants initiated the prosecution against Plaintiffs.

112. Defendants lacked probable cause to believe Plaintiff were guilty or that the prosecutions could succeed.

113. Defendants acted with malice, which, in the absence of probable cause, may be inferred.

114. The prosecutions were terminated in Plaintiffs' favor, when all criminal charges were unconditionally dismissed and sealed.

115. Due to the intentional, willful and unlawful acts of Defendants, Plaintiffs suffered significant damages.

116. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

117. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

TENTH CAUSE OF ACTION

Malicious Prosecution Under
42 U.S.C. § 1983 Against Individual Defendants

118. The above paragraphs are here incorporated by reference as though fully set forth herein.

119. Defendants initiated the prosecutions against Plaintiffs.

120. Defendants lacked probable cause to believe Plaintiffs were guilty or that the prosecutions would succeed.

121. Defendants acted with malice, which, in the absence of probable cause, may be inferred.

122. The prosecution was terminated in Plaintiffs' favor, when all criminal charges were unconditionally dismissed and sealed.

123. Accordingly, Defendants violated Plaintiffs' Fourth and Fourteenth Amendment rights.

124. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

ELEVENTH CAUSE OF ACTION

Malicious Abuse of Process Under
New York State Law

125. The above paragraphs are here incorporated by reference as though fully set forth herein.

126. Defendants arrested, detained and caused a criminal prosecution to be initiated or maintained against Plaintiffs to compel the compliance or forbearance of some act.

127. Defendants had no excuse or justification to forcibly detain or initiate prosecutions against Plaintiffs, especially with the absence of any cognizable probable cause.

128. Defendants intended to inflict substantial harm upon Plaintiffs.

129. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiffs' criminal prosecutions.

130. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

131. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

TWELFTH CAUSE OF ACTION

Malicious Abuse of Process Under
42 U.S.C. § 1983 Against Individual Defendants

132. The above paragraphs are here incorporated by reference as though fully set forth herein.

133. Defendants arrested, detained and caused criminal prosecutions to be initiated or maintained against Plaintiffs to compel the compliance or forbearance of some act.

134. Defendants had no excuse or justification to forcibly detain and initiate prosecutions against Plaintiffs, especially with the absence of any cognizable probable cause.

135. Defendants intended to inflict substantial harm upon Plaintiffs.

136. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiffs' criminal prosecutions.

137. Defendants' actions deprived Plaintiffs of their constitutional rights to free from illegal searches and seizures and to not be deprived of liberty without the due process of law in violation of the Fourth and Fourteenth Amendments to the United States Constitution.

138. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

THIRTEENTH CAUSE OF ACTION

Denial of Right to Fair Trial Under
New York State Law

139. The above paragraphs are here incorporated by reference as though fully set forth herein.

140. Defendants fabricated false evidence to be used against Plaintiffs that was likely to influence a jury's decision.

141. Defendants forwarded said false information to prosecutors within the District Attorney's Office.

142. Defendants' actions resulted in post-arraignment restrictions and deprivations upon Plaintiff's liberty and freedom of movement.

143. Accordingly, Defendants deprived Plaintiffs of civil rights, pursuant to Article I, Sections 1, 2, 6 & 9, of the New York State Constitution, as well Article II, Sections 10 & 12, of the New York Civil Rights Law.

144. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

145. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

FOURTEENTH CAUSE OF ACTION

Denial of Right to Fair Trial Under
42 U.S.C. § 1983 Against Individual Defendants

146. The above paragraphs are here incorporated by reference as though fully set forth herein.

147. Defendants fabricated false evidence to be used against Plaintiffs that was likely to influence a jury's decision.

148. Defendants forwarded said false information to prosecutors within the District Attorney's Office.

149. Defendants' actions resulted in post-arraignment restrictions and deprivations upon Plaintiffs' liberty and freedom of movement.

150. Accordingly, Defendants violated Plaintiffs' right to fair trial, pursuant to the Fifth, Sixth and Fourteenth Amendments to United States Constitution.

151. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

FIFTEENTH CAUSE OF ACTION

Biased Based Profiling under
New York City Law

152. The above paragraphs are here incorporated by reference as though fully set forth herein.

153. Defendants impermissibly relied upon Plaintiffs' actual or perceived race, color, national origin, ancestry, citizenship status, gender, religion, religious practice, age, disability or sexual orientation, as the determinative factor in initiating law enforcement action against Plaintiffs rather than Plaintiffs' behavior or other information or circumstances that would link Plaintiffs to suspected unlawful activity.

154. Accordingly, Defendants violated Plaintiffs' rights, pursuant to the Administrative Code of the City of New York, Section 14-151.

155. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

156. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

SIXTEENTH CAUSE OF ACTION

Deprivation of Rights and Denial of Equal Protection of the Laws under
New York State law

157. The above paragraphs are here incorporated by reference as though fully set forth herein.

158. Plaintiffs, as Black or African American males, are members of a racial minority and protected class.

159. Defendants discriminated against Plaintiffs on the basis of, *inter alia*, their race, color, national origin, ancestry, gender, religion, religious practice, age, disability or sexual orientation.

160. Defendants also engaged in the selective treatment of Plaintiffs, in comparison to others similarly situated.

161. Defendants' discriminatory treatment of Plaintiffs was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiffs for the exertion of their Constitutional rights, or a malicious or bad faith intent to injure Plaintiffs.

162. Defendants applied facially neutral laws against Plaintiffs in a discriminatory manner.

163. Defendants, motivated by discriminatory animus, applied facially neutral statutes with adverse effects against Plaintiffs.

164. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiffs.

165. Accordingly, Defendants violated Plaintiffs' rights, pursuant to Article I, Section 11, of the New York State Constitution, Article VII, Section 79-N, of the New York Civil Rights Law and Section 296, Paragraph 13, of the New York Human Rights Law.

166. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

167. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

SEVENTEENTH CAUSE OF ACTION

Deprivation of Rights and Denial of Equal Protection of the Laws under
42 U.S.C. §§ 1981 and 1983 Against Individual Defendants

168. The above paragraphs are here incorporated by reference as though fully set forth herein.

169. Plaintiffs, as Black or African American males, are a members of a racial minority and protected class.

170. Defendants discriminated against Plaintiff on the basis of their race, color, or ethnicity.

171. Defendants engaged in the selective treatment of Plaintiffs in comparison to others similarly situated.

172. Defendants' selective treatment of Plaintiffs was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiffs for the exertion of their Constitutional rights, or malicious or bad faith intent to injure Plaintiffs.

173. Defendants applied facially neutral laws against Plaintiffs in a discriminatory manner.

174. Defendants, motivated by a discriminatory animus, applied facially neutral penal statutes with adverse effects against Plaintiffs.

175. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiffs.

176. Accordingly, Defendants violated Plaintiffs' rights, under the Fourteenth Amendment.

177. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

EIGHTEENTH CAUSE OF ACTION

Conspiracy to Interfere with Civil Rights and Failure to Prevent the Conspiracy under
42 U.S.C. §§ 1983, 1985 and 1986 Against Individual Defendants

178. The above paragraphs are here incorporated by reference as though fully set forth herein.

179. Defendants engaged in a conspiracy against Plaintiffs to deprive Plaintiffs of their rights to engage in protected speech or activities, to be free from unreasonable searches and seizures, to be afforded a fair trial, to not be deprived of their liberty or property without due process of law, or of the privileges and immunities under the laws and constitutions of the United States and of the State of New York.

180. Defendants committed overt acts in furtherance of their conspiracy against Plaintiffs.

181. As a result, Plaintiffs sustained injuries to his person, was deprived of their liberty or was deprived of rights or privileges of citizens of the United States.

182. Defendants' conspiracy was motivated by a desire to deprive Plaintiffs of their civil rights or because of some racial, otherwise class-based, invidious or discriminatory animus.

183. The Defendants that did not engage or participate in the conspiracy to interfere with Plaintiffs' civil rights, had knowledge that acts in furtherance of the conspiracy were about to be committed or in process of being committed, possessed the power to prevent or aid in the prevention of the conspiratorial objective, and neglected to do so.

184. Accordingly, Defendants violated Plaintiffs' rights, pursuant to the Fourth, Fifth, Sixth and/or Fourteenth Amendments to the United States Constitution.

185. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

NINETEENTH CAUSE OF ACTION

Failure to Intervene Under
New York State Law

186. The above paragraphs are here incorporated by reference as though fully set forth herein.

187. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

188. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

189. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

TWENTIETH CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual Defendants

190. The above paragraphs are here incorporated by reference as though fully set forth herein.

191. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

192. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.

193. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

TWENTY-FIRST CAUSE OF ACTION

Due Process/Fabrication of Evidence Claim Under
42 U.S.C. § 1983 Against Individual Defendants

194. The above paragraphs are here incorporated by reference as though fully set forth herein.

195. Those Defendants deliberately fabricated evidence against the Plaintiffs and that as a result of this evidence being used against him, he was deprived of his constitutional right without due process of law.

196. As a result, Plaintiffs sustained injuries to his person, was deprived of his liberty or was deprived of rights or privileges of citizens of the United States.

197. The Defendants fabricated evidence in order to support their false arrests, detentions, and prosecutions of the Plaintiffs. The Defendants used this fabricated evidence and informed the prosecution that the fabricated evidence was true and accurate despite the fact that knew that the fabricated evidence was not true. As a result, Plaintiffs was deprived of their constitutional rights.

198. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

TWENTY-SECOND CAUSE OF ACTION

Negligent Hiring, Training, Retention and Supervision Under
New York State Law

199. The above paragraphs are here incorporated by reference as though fully set forth.

200. Defendant City owed a duty of care to Plaintiffs to adequately hire, train, retain and supervise its employee Defendants.

201. Defendant City breached those duties of care.

202. Defendant City placed Defendants in a position where they could inflict foreseeable harm.

203. Defendant City knew or reasonably should have known of its employees' propensity for committing civil rights violations.

204. Defendant City failed to take reasonable measures in hiring, training, retaining and supervising its employee Defendants that would have prevented the aforesaid injuries to Plaintiffs.

205. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

TWENTY THIRD CAUSE OF ACTION

Breach of Bailment and Unconstitutional taking

In favor of Plaintiff MARTINEZ only

New York State Law and 42 USC 1983

206. The above paragraphs are here incorporated by reference as though fully set forth herein.
207. That Defendants took possession of Plaintiff's motor vehicle and property.
208. That when such possession was assumed by Defendants, Defendants assumed the role of bailee.
209. That pursuant and implicit to Defendants' assumed role of bailee, Defendants assumed an implied contractual obligation to safeguard Plaintiff's aforesaid property pending the disposition of the subject criminal suit.
210. That the aforesaid subject criminal suit terminated in Plaintiff's favor.
211. That Defendants were obligated and required to return said motor vehicle and property to Plaintiff.
212. That Defendants failed to safeguard Plaintiff's property.
213. That Defendants' undue and improper destruction of Plaintiff's aforesaid property constituted a breach of its assumed contractual obligations as bailee.
214. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
215. No just compensation was issued to Plaintiff for the unlawful seizure and the failure to his vehicle.
216. The aforesaid breach of bailment further constituted an unconstitutional taking in violation of the Fifth Amendment to the United States Constitution.
217. As a direct and proximate result of this unlawful conduct, Plaintiff MARTINEZ sustained the damages hereinbefore alleged.

TWENTY-FOURTH CAUSE OF ACTION

Municipal “*Monell*” Liability Under
42 U.S.C. § 1983 Against Defendant City

218. The above paragraphs are here incorporated by reference as though fully set forth.

219. Defendant City maintained a policy or custom that caused Plaintiffs to be deprived of their civil rights, tacitly approved of such violative conduct or was deliberately indifferent toward the potential exposure of individuals, such as Plaintiffs, to such violative behavior.

220. Defendant City’s employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of.

221. Defendant City, its policymakers and supervisors failed to provide adequate training or supervision to their subordinates, to such an extent that is tantamount to the City’s deliberate indifference toward the rights of those who may come into contact with Defendant City’s employees.

222. Defendant City’s employees engaged in such egregious and flagrant violations of Plaintiffs’ Constitutional rights that the need for enhanced training or supervision is obvious and equates to a display of deliberate indifference by Defendant City and its policymakers toward the rights of individuals, who may come into contact with Defendant City’s employees.

223. Defendant City’s repeated refusal or failure to install or apply corrective or preventive measures constitutes the tacit approval of such violative behavior or a deliberate indifference to the rights of those who may be affected by such behavior.

224. Defendant City’s conduct caused Plaintiffs to be deprived of their civil rights, as guaranteed by the Constitution of the United States, via the First, Fourth, Fifth, Sixth & Fourteenth Amendments thereto.

225. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

WHEREFORE, Plaintiffs respectfully request judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- m) On the Thirteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- n) On the Fourteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- o) On the Fifteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- p) On the Sixteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- q) On the Seventeenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- r) On the Eighteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- s) On the Nineteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- t) On the Twentieth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- u) On the Twenty-First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- v) On the Twenty-Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- w) On the Twenty-Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- x) On the Twenty-Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- y) Awarding Plaintiff punitive damages in an amount to be determined by a jury on all causes of action set forth herein;
- z) Awarding Plaintiff reasonable attorneys' fees and costs, pursuant to 42 U.S.C. § 1988 and all applicable state or local laws; together with the costs and disbursements of this action.

JURY DEMAND

Plaintiff hereby demands a trial by jury.

Dated: Bayside, New York
March 13, 2024

SIM & DEPAOLA, LLP

Attorneys-at-Law

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Bayside, New York 11361

(718) 281-0400



Sameer Nath, Esq.

ATTORNEY VERIFICATION

I, Sameer Nath, an attorney admitted to practice in the courts of New York State, state that I am an associate with the firm of **SIM & DEPAOLA, LLP**, the attorneys of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiff, is because Plaintiff resides outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
March 13, 2024



Sameer Nath, Esq.